

Court No. - 9

Case :- WRIT - C No. - 64260 of 2009

Petitioner :- Shri Madan Mohan Srivastava

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. & Anr.

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- H.P. Dube

Hon'ble Vijay Manohar Sahai,J.

Hon'ble Yogesh Chandra Gupta,J.

Heard learned counsel for the petitioner and Sri H.P. Dube learned counsel appearing for the respondents.

The petitioner is posted at Gorakhpur and his care taker resides at Varanasi. It is alleged that without any rhyme or reason, assessment of the petitioner's house with regard of theft of electricity has been made which prima facie appears to be illegal.

Until further orders of this Court, recovery proceedings against the petitioner initiated by the respondents (Annexure NO.7 to the writ petition) shall remain stayed.

Order Date :- 25.11.2009

NS

Court No. - 36

Case :- WRIT - C No. - 64260 of 2009

Petitioner :- Shri Madan Mohan Srivastava

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. & Anr.

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- H.P. Dube

Hon'ble Prakash Krishna,J.

Hon'ble Yogesh Chandra Gupta,J.

No counter-affidavit has been filed as yet.

The writ petition stands admitted.

Three weeks' further time is granted to file counter affidavit. List thereafter.

Order Date :- 25.1.2010

Zh

Court No. - 32

Case :- WRIT - C No. - 64260 of 2009

Petitioner :- Shri Madan Mohan Srivastava

Respondent :- Purvanchal Vidyut Vitran Nigam
Ltd. And Anr.

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- H.P. Dube

Hon'ble Shashi Kant Gupta,J.

Hon'ble Pankaj Bhatia,J.

List correctly in the next cause list showing the name Mr. Mahmood Ahmad as Counsel for the Electricity Department.

List the matter after two weeks.

In the meantime, learned counsel for the Electricity Department may file counter affidavit.

Order Date :- 17.4.2019

Arun

Court No. - 32

Case :- WRIT - C No. - 64260 of 2009

Petitioner :- Shri Madan Mohan Srivastava

Respondent :- Purvanchal Vidyut Vitran Nigam
Ltd. And Anr.

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- H.P. Dube

Hon'ble Shashi Kant Gupta,J.

Hon'ble Pankaj Bhatia,J.

By order dated 17.04.2019, Office was directed to indicate the name of Mr. Mahboob Ahmad as Counsel for the Electricity Department but the said order has not been complied with by the Office.

Office is directed to explain as to why the order dated 17.04.2019 passed by this Court has not been complied with.

List the matter in the next cause list showing the name of Mr. Mahboob Ahmad as Counsel for the Electricity Department.

Order Date :- 1.5.2019

Arun

Court No. - 32

Case :- WRIT - C No. - 64260 of 2009

Petitioner :- Shri Madan Mohan Srivastava

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Anr.

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- H.P. Dube

Hon'ble Shashi Kant Gupta,J.

Hon'ble Pankaj Bhatia,J.

The petitioner has filed this petition seeking following reliefs:-

"a) Issue a writ, order or direction in the nature of writ of certiorari quashing the demand notice dated 9.11.2009 along with communication dated 17.8.2009 and undated assessment bill (Annexure Nos.7 & 5 to the writ petition).

b) Issue a writ, order or direction in the nature of writ of mandamus restraining the respondent no.2 from recovering sum in question from the petitioner in any manner including coercive process and further not to isolate power supply of the petitioner.

c) Issue a writ, order or direction in the nature of writ of mandamus restraining the respondent no.2 from disconnecting electricity supply of the petitioner.

d) Issue a writ, order or direction in the nature of writ of mandamus directing the respondent no.2 to refund/adjust along with interest an amount of Rs.20,000/- realized from the petitioner towards alleged compounding charges."

Heard learned counsel for the petitioner and learned counsel for the Purvanchal Vidyut Vitran Nigam Limited.

Learned counsel for the petitioner argued that without passing a final assessment order a demand notice has been issued which is contrary to the provisions of Electricity Supply Code, 2005 which provides for a detail procedure for assessment and it is

incumbent upon the respondents to give an opportunity of hearing and thereafter pass a final assessment order. Counsel for the petitioner has relied upon a judgment of this Court in the case of *Kamil Vs. State of U.P. and others* 2016 (6) ADJ 11 (DB).

Considering the submissions made by the petitioner, we permit the petitioner to appear before the respondent no.2 and file his objections against the provisional assessment within a period of four weeks from today and in the event such objections are filed, the respondent no.2 shall take a decision thereupon and pass a final assessment order in accordance with law.

In view of the directions given above, the demand notice dated 9.11.2009 along with communication dated 17.8.2009 and undated assessment bill (Annexure Nos.7 & 5 to the writ petition) are hereby quashed.

The writ petition stands allowed accordingly.

Order Date :- 8.5.2019

Hasnain